

815.) To establish such a claim, a plaintiff must “plead that she suffered a certain harm, that this harm was substantially caused by the defendant’s employee, and that this harm would not have occurred if the defendant had properly vetted, supervised, or retained the employee.” (*Lopez v. Watchtower Bible & Tract Soc’y of New York, Inc.* (2016) 246 Cal. App. 4th 566, 591.) The tort’s intent is to punish defendants who knew, or should have known, of their employee’s propensity to commit the harm in question but failed to take reasonable steps to prevent the harm from occurring to the plaintiff. (*Id.*)

Plaintiff alleges that “PEARSON” and “others” purportedly “perpetrated aggressive and hostile discrimination and/or harassment . . . based on her medical condition, national origin, age, and whistleblower status.” (FAC ¶ 98.) Like the previous causes of action, Plaintiff offers no facts from which the Court could even infer that Defendant knew or should have known that “PEARSON” and unidentified “others” had a propensity to engage in the purported unlawful conduct. Plaintiff must factually describe what “PEARSON” and unidentified “others” did wrong, when it occurred, where it occurred, how she was harmed by this conduct, and how Defendant knew or should have known about this behavior before it occurred. Instead, Plaintiff offers only the naked conclusion that Defendant “condoned, encouraged, tolerated, sanctioned, ratified, approved of, and/or acquiesced in the discrimination and harassment.” (FAC ¶ 99.)

Plaintiff’s Wrongful Termination Claim (Cause 10)

In support of this cause of action, Plaintiff offers only the conclusion that Defendant’s “violations of Plaintiff’s rights, due to every member of protected classes, violated civil rights laws and Government Code and proximately caused Plaintiff’s damages . . .” [FAC ¶ 114.] These conclusions do not state a claim. (See *Hawkins v. TACA Int’l Airlines, S.A.* (2014) 223 Cal. App. 4th 466,478 (“When we review a ruling on a demurrer, we do not assume the truth of contentions or conclusions of fact or law[.]”.) Setting aside its conclusory nature, Plaintiff’s wrongful termination allegations also fail because they hinge on the viability of her FEHA causes of action. Accordingly, the allegations are derivative and must fail as Plaintiff has not stated a viable predicate claim

Individual Liability For Defendant Pearson Exists Under FEHA Harassment Claims

Government Code § 12940(j)(3) expressly permits individual liability for harassment. (See *Reno v. Baird* (1998) 18 Cal.4th 640, 645–46 (individual liability applies to harassment); *Jones v. The Lodge at Torrey Pines* (2008) 42 Cal.4th 1158, 1162 (same); *Raines v. U.S. Healthworks* (2023) 15 Cal.5th 268 (reaffirming individual liability for harassment claims). Harassment includes “conduct outside the scope of necessary job performance,” including “derogatory comments, insults, and epithets.” (*Roby v. McKesson* (2009) 47 Cal.4th 686.) Harassment can also apply to a single severe incident under FEHA.” (*Miller v. Dept. of Corrections* (2005) 36 Cal.4th 446, 462.)

Since individual liability only exists as to harassment-based claims, all non-harassment-based claims must fail. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.

Conclusion

For the reasons analyzed above, **Defendant Chase’s Demurrer is sustained in its entirety with leave to amend. The Demurrer for causes of action two, four, eight, nine, and ten are sustained without leave to amend as to Defendant Pearson. The Demurrer for causes one, three, five, six, and seven are sustained with leave to amend as to Defendant Pearson.**

6. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
*HEARING ON MOTION IN RE: STRIKE 1ST AMENDED COMPLAINT
FILED BY: JP MORGAN CHASE BANK NATIONAL ASSOCIATION
TENTATIVE RULING:

Before the Court is Defendants JPMorgan Chase Bank, N.A. and Stacey Pearson's Motions to Strike. The Motions to Strike relates to Plaintiff's FAC for ten causes of action for employment-related claims.

Since Plaintiff was granted leave to amend for the Demurrer, the Motion to Strike is overruled as moot.

7. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
*HEARING ON MOTION IN RE: TO STRIKE PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PEARSON, STACEY
TENTATIVE RULING:

See line 6.

8. 9:00 AM CASE NUMBER: C25-00878
CASE NAME: ANGELA YEUNG VS. JP MORGAN CHASE BANK NATIONAL ASSOCIATION
HEARING ON DEMURRER TO: TO PLAINTIFF'S FIRST AMENDED COMPLAINT
FILED BY: PEARSON, STACEY
TENTATIVE RULING:

See line 5.

9. 9:00 AM CASE NUMBER: C25-01177
CASE NAME: NEDA VALIASHRAFI VS. MANSOUR AZIZI
*HEARING ON MOTION IN RE: SET ASIDE DEFAULT OF A TO Z PLUMBING
FILED BY: A TO Z PLUMBING, HEATING SERVICES INC
TENTATIVE RULING:

The unopposed motion to set aside default will be granted provided Defendant A to Z Plumbing files a proposed answer or other responsive pleading by December 17, 2026, at 3pm. The motion is continued to December 19, 2026, for confirmation of such filing.

10. 9:00 AM CASE NUMBER: N25-0756
CASE NAME: RAINS LUCIA STERN ST. PHALLE & SILVER, PC VS. DAN MIERZWA
HEARING ON DEMURRER TO: PETITIONER'S VERIFIED PETITION FOR WRIT OF MANDATE
FILED BY: MIERZWA, DAN M.
TENTATIVE RULING:

Hearing continued by stipulation of the parties to February 6, 2026, at 9 a.m.